



Disability Standards for Education Amendment Standards 2025

I, Michelle Rowland, Attorney-General, make the following standards.

Dated 12 November 2025

Michelle Rowland
Attorney-General

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1 Name

This instrument is the *Disability Standards for Education Amendment Standards 2025*.

2 Commencement

- (1) Each provision of this instrument specified in column 1 of the table commences, or is taken to have commenced, in accordance with column 2 of the table. Any other statement in column 2 has effect according to its terms.

Commencement information		
Column 1	Column 2	Column 3
Provisions	Commencement	Date/Details
1. The whole of this instrument	The later of: (a) 1 August 2026; and (b) the day after the last day on which a resolution disallowing this instrument could be passed by either House of the Parliament under the <i>Legislation Act 2003</i> . However, the provisions do not commence at all if the instrument or a provision of the instrument is disallowed or taken to have been disallowed under that Act.	

Note: This table relates only to the provisions of this instrument as originally made. It will not be amended to deal with any later amendments of this instrument.

- (2) Any information in column 3 of the table is not part of this instrument. Information may be inserted in this column, or information in it may be edited, in any published version of this instrument.

3 Authority

This instrument is made under subsection 31(1) of the *Disability Discrimination Act 1992*.

4 Schedules

Each instrument that is specified in a Schedule to this instrument is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this instrument has effect according to its terms.

Schedule 1—Amendments about providers

Disability Standards for Education 2005

1 Introduction (paragraph beginning “These standards”)

Repeal the paragraph, substitute:

Section 31 of the *Disability Discrimination Act 1992* (the *Act*) enables the Attorney-General to formulate disability standards in relation to a range of areas in which it is unlawful to discriminate on the basis of disability, including the areas of education and the provision of services such as educational early childhood services. These Standards are formulated by the Commonwealth Attorney-General under subsection 31(1) of the Act.

2 Introduction (paragraph beginning “The Act”)

Repeal the paragraph, substitute:

The Act seeks to eliminate, as far as possible, discrimination against people with disabilities. Under section 22 of the Act, it is unlawful for an educational authority to discriminate against a person on the ground of the person’s disability. Under section 24 of the Act, it is unlawful for a service provider to discriminate against a person on the ground of the person’s disability, such as by refusing to provide services, or in the terms or conditions on which, or the manner in which, the services are provided.

3 Introduction (paragraph beginning “The Standards are subordinate”)

After “legal obligations in relation to education”, insert “and provision of educational early childhood services”.

4 Introduction (paragraph beginning “The standards set out”)

Omit “of the Standards specify how education and training are to be made accessible to students with disabilities”, substitute “specify how education, training and educational early childhood services are to be made accessible to persons with disabilities”.

5 Introduction (paragraph beginning “The standards set out”)

Omit “student support services”, substitute “support services”.

6 Introduction (paragraph beginning “The Part for each”)

Repeal the paragraph, substitute:

The Part for each area includes a statement of the *rights*, or entitlements, of:

- students with disabilities in relation to education and training; and
- children with disabilities in relation to educational early childhood services;

consistent with the rights of the rest of the community. The statements of rights are included to assist people to understand, and comply with, the standards set out in the obligation provisions.

7 Introduction (paragraph beginning “The Standards are accompanied”)

Repeal the paragraph, substitute:

Subsection 1.5(2) provides that these Standards also apply to educational early childhood service providers and the children enrolled in, or seeking enrolment in, educational early childhood services.

Note Supporting documents that may assist in the interpretation of these Standards could in 2025 be viewed on the Commonwealth Department of Education’s website (<https://www.education.gov.au/disability-standards-education-2005>).

8 After section 1.2

Insert:

1.2A Authority

These Standards are made under subsection 31(1) of the Act.

9 Paragraph 1.3(a)

Repeal the paragraph, substitute:

- (a) to eliminate, as far as possible, discrimination against persons on the ground of disability in the areas of:
 - (i) education and training; and
 - (ii) provision of educational early childhood services; and

10 Paragraph 1.3(b)

Omit “area of education and training”, substitute “areas of education, training and the provision of educational early childhood services”.

11 Section 1.3 (note)

After “in relation to education”, insert “and the provision of services”.

12 Section 1.4

Insert:

approved provider, for an educational early childhood service, means the person or other entity that is the approved provider (however described) of the service under a law of the Commonwealth, a State or a Territory.

Note: For example, an approved provider for the purposes of these Standards includes, but is not limited to, a person or other entity that is one of the following:

- (a) an approved provider within the meaning of the *A New Tax System (Family Assistance) (Administration) Act 1999* (Cth);
- (b) an approved provider in a State or Territory (other than Western Australia) within the meaning of the Education and Care Services National Law set out in the Schedule to the *Education and Care Services National Law Act 2010* (Vic), as that National Law is applied in that State or Territory;
- (c) an approved provider in Western Australia within the meaning of the Education and Care Services National Law set out in the Schedule to the *Education and Care Services National Law (WA) Act 2012* (WA).

educational early childhood service has the meaning given by subsection 2.1A(1).

educational early childhood service provider has the meaning given by subsections 2.1A(2) and (3).

13 Section 1.4 (at the end of the definition of *prospective student*)

Add:

Note: A prospective student may be a person under 18 years of age.

14 Section 1.4 (at the end of the definition of *student*)

Add:

Note: A student may be a person under 18 years of age.

15 Section 1.5

Before “These Standards”, insert “(1)”.

16 Section 1.5 (before note 1)

Insert:

- (2) Subject to section 12 of the Act, these Standards:
 - (a) apply to educational early childhood service providers as if they were education providers who are educational institutions; and
 - (b) apply to educational early childhood services as if they were courses or programs offered by education providers; and
 - (c) apply to children enrolled in educational early childhood services as if those children were students enrolled in educational institutions; and
 - (d) apply to children seeking admission to, or applying for enrolment in, educational early childhood services (including where an associate of the child seeks the admission or applies for the enrolment) as if those children were prospective students of educational institutions.
- (3) Subject to section 12 of the Act, the standards in Part 6 also apply to persons who provide a service of developing or accrediting curricula, learning frameworks or training courses to, or for use by, an educational early childhood service provider in providing educational early childhood services as if such persons were education providers.
- (4) To avoid doubt, these Standards may apply to a person under one or more of subsections (1), (2) and (3).

17 Section 1.5 (note 1)

Omit “Education providers, bound by the”, substitute “Providers, bound by these”.

18 Section 1.5 (paragraph (a) of note 1)

Repeal the paragraph, substitute:

- (a) preschools, including kindergartens;
- (aa) providers of other educational early childhood services (see section 2.1A for the definition of *educational early childhood service provider*) such as centre based care, family day care, outside school hours care, vacation care and in home care services;

19 Section 1.5 (note 2)

After “curricula,”, insert “learning frameworks,”.

20 At the end of section 1.5

Add:

Note 4: Educational early childhood services may be delivered in a range of modes. These Standards apply to an educational early childhood provider regardless of the mode used to deliver the educational early childhood services.

21 After section 2.1

Insert:

2.1A Educational early childhood services and educational early childhood service providers

- (1) For these Standards, an ***educational early childhood service*** is any of the following services:
 - (a) an approved child care service (as defined in section 194G of the *A New Tax System (Family Assistance) (Administration) Act 1999*);
 - (b) a service that is approved under a law of a State or a Territory to provide child care or a preschool program, and which is legally required to provide children enrolled in the service with an educational program based on a learning framework approved by one or more of the following:
 - (i) the Ministerial Council (within the meaning of the Education and Care Services National Law set out in the Schedule to the *Education and Care Services National Law Act 2010* (Vic.));
 - (ii) the Commonwealth, or an official or authority of the Commonwealth;
 - (iii) a State or Territory, or an official or authority of a State or Territory.
- (2) For these Standards, each of the following is an ***educational early childhood service provider*** in relation to an approved provider for an educational early childhood service:
 - (a) if the approved provider of the service is a legal person—the person;
 - (b) if the approved provider of the service is a partnership—a member of the partnership;
 - (c) in any other case—a member of the governing body of the entity that is the approved provider of the service.

22 Before section 4.1

Insert:

4.1A Statement of rights

Rights given by this Part

The effect of the standards in this Part is to give prospective students with disabilities the right to enrol in an educational institution on the same basis as prospective students without disabilities, including the right to reasonable adjustments that are necessary to ensure that they are able to so enrol on the same basis as prospective students without disabilities.

23 Section 4.1

Omit all words from and including “***Rights given by this Part***”.

24 At the end of Section 4.1

Add:

Note: See section 1.5 for how these Standards apply in relation to the provision of educational early childhood services.

25 Before section 5.1

Insert:

5.1A Statement of rights

Rights given by this Part

The effect of the standards in this Part is to give students with disabilities the right to participate in the courses or programs, and to use services and facilities, provided by an educational institution, on the same basis as students without disabilities, including the right to reasonable adjustments, where necessary, to ensure they are able to participate in education and training, on the same basis as students without disabilities.

26 Section 5.1

Omit all words from and including “***Rights given by this Part***”.

27 At the end of Section 5.1

Add:

Note: See section 1.5 for how these Standards apply in relation to the provision of educational early childhood services.

28 Before section 6.1

Insert:

6.1A Statement of rights

Rights given by this Part

The effect of the standards in this Part is to give students with disabilities the right to participate in educational courses or programs that are designed to develop their skills, knowledge and understanding, including relevant supplementary programs, on the same basis as students without disabilities.

29 Section 6.1

Omit all words from and including “***Rights given by this Part***”.

30 At the end of Section 6.1

Add:

Note: See section 1.5 for how these Standards apply in relation to the provision of educational early childhood services.

31 Part 7 (heading)

Omit “**student**”.

32 Before section 7.1

Insert:

7.1A Statement of rights***Rights given by this Part***

The effect of the standards in this Part is to give students with disabilities rights in relation to student support services provided by educational authorities and institutions, on the same basis as students without disabilities.

The standards also give students with disabilities rights in relation to specialised services needed for them to participate in the educational activities for which they are enrolled. These services include specialist expertise, personal educational support or support for personal and medical care, without which some students with disabilities would not be able to access education and training.

33 Section 7.1Omit all words from and including “***Rights given by this Part***”.**34 At the end of Section 7.1**

Add:

Note: See section 1.5 for how these Standards apply in relation to the provision of educational early childhood services.

35 Before section 8.1

Insert:

8.1A Statement of rights***Rights given by this Part***

The effect of the standards in this Part is to require strategies and programs to support the right of students with disabilities to education or training in an environment that is free from discrimination caused by harassment or victimisation on the basis of their disability.

The standards also support the right of students who have associates with disabilities to an educational environment free from discrimination, harassment or victimisation in relation to those disabilities.

Note: The exception set out in section 10.2, relating to compliance that imposes unjustifiable hardship on an education provider, does not apply to a requirement in this Part.

36 Section 8.2Omit all words from and including “***Rights given by this Part***”.**37 At the end of Section 8.2**

Add:

Note: See section 1.5 for how these Standards apply in relation to the provision of educational early childhood services.

38 Section 9.1

Omit “For section 34”, substitute “(1) For the purposes of section 34”.

39 At the end of section 9.1 (after the note)

Add:

- (2) For the purposes of section 34 of the Act, an action that contravenes the provisions of section 24 of the Act in relation to a person who has an associate with a disability is not an action in accordance with these Standards.

Note: Section 24 of the Act provides that a provider of services (such as educational early childhood services) must not discriminate against a person on the grounds of the person’s disability by refusing to provide the services, or in the terms or conditions on which, or the manner in which, the services are provided.

Schedule 2—Miscellaneous amendments

Disability Standards for Education 2005

1 Introduction (paragraph beginning “The Standards are subordinate”)

Omit “The Standards”, substitute “These Standards”.

2 Introduction

Omit “Human Rights and Equal Opportunity Commission”, substitute “Australian Human Rights Commission”.

3 Introduction (paragraph beginning “The standards set out” (heading))

Omit “the standards”, substitute “these Standards”.

4 Section 1.4 (note)

Omit “the Standard, under the *Acts Interpretation Act 1901*”, substitute “these Standards, under the *Acts Interpretation Act 1901* (as that Act applies in relation to these Standards because of paragraph 13(1)(b) of the *Legislation Act 2003*)”.

5 Section 1.5 (note 3)

Omit “The Standards”, substitute “These Standards”.

6 Subsection 2.2(1)

Omit “institution”, substitute “educational institution”.

7 Paragraph 3.3(a)

Omit “his or her”, substitute “the”.

8 Subsection 3.4(2) (note)

Omit “The Standards”, substitute “These Standards”.

9 Subsection 3.7(2)

Omit “his or her”, substitute “the student’s”.

10 Section 4.3

Omit “his or her” (wherever occurring), substitute “the student’s”.

11 Paragraph 4.3(c)

After “student, or”, insert “the”.

12 Paragraph 5.3(d)

Omit “him or her”, substitute “the student”.

13 Subsection 6.2(1)

Repeal the subsection, substitute:

- (1) The education provider must take reasonable steps to ensure that the course or program is designed in such a way that:
 - (a) a student with a disability who is undertaking the course or program; or

(b) a student with a disability whom the provider has a reasonable expectation may undertake the course or program;
is able to participate in the learning experiences (including the assessment and certification requirements) of the course or program, and any relevant supplementary course or program, on the same basis as a student without a disability, and without experiencing discrimination.

14 Subsection 6.2(2)

Omit “If a student”, substitute “If a student with a disability”.

15 Section 6.3

Omit “enable the student” (first occurring), substitute “enable a student with a disability who is undertaking the course or program”.

16 Paragraph 6.3(a)

Omit “him or her”, substitute “the student”.

17 Paragraph 6.3(d)

Omit “his or her”, substitute “the”.

18 Subsections 7.2(2) and (3)

Omit “he or she”, substitute “the student”.

19 Paragraph 7.2(6)(b)

Omit “he or she”, substitute “the student”.

20 Section 7.3

Omit “his or her”, substitute “the student has”.

21 Section 8.1 (note)

Omit “sections 37 and 38”, substitute “section 37”.

22 Section 8.4

Omit “38” (first occurring), substitute “39”.

23 Section 8.4 (note)

Omit “Section 38 of the Act makes it unlawful for a member of staff of an educational institution to harass a student or prospective student who has an associate with a disability.”, substitute “Section 39 of the Act makes it unlawful for an educational early childhood service provider to harass a child with a disability who is seeking enrolment in the educational early childhood service”.

24 Subsection 10.2(3)

Omit “the Standards”, substitute “these Standards”.

25 Subsection 10.2(3) (note)

Omit “and the Standards”, substitute “and these Standards”.

26 Subsection 10.2(3) (note)

Omit “The Standards”, substitute “These Standards”.

27 Section 11.1

Omit “Minister for Education, Science and Training”, substitute “Minister for Education”.